

25NNCV07452 25NNCV07452

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Case Number: 25NNCV07452 Hearing Date: July 17, 2026 Dept: D

TENTATIVE RULING

Calendar: 2

Date: July 17, 2026

Case No: 25NNCV07452 Trial Date: Not yet set

Case Name: M.A., et al., v. Pasadena Unified School District, et al.

DEMURRER

[CCP § 430.10 subd. (e)]

Moving Party: Defendant, Pasadena Unified School District

Responding Party: Plaintiffs, M.A., a minor, by and through his Guardian ad Litem, Areg A., and A.A., a minor, by and through his Guardian ad Litem, Areg A.

RELIEF REQUESTED:

Sustain demurrer to First Amended Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Negligence

2) Negligent Hiring, Supervision, or Retention of Employee

3) Failure to Perform Mandatory Duty

SUMMARY OF FACTS:

The Complaint alleges that in October 2024, during school hours and on campus, M.A. was assaulted and battered by another student, J.H., in the presence of multiple students, causing visible bruising to his face, neck, and chest. The Complaint alleges that school staff notified Areg A., but downplayed the incident and failed to mention the severity of M.A.'s injuries. The Complaint alleges that when Areg A. arrived to pick M.A. up, he observed severe bruising across M.A.'s face, neck, and chest and immediately took M.A. to the emergency room. The school claims it implemented a safety plan; however, Plaintiffs allege that the plan was not implemented or enforced.

The Complaint alleges that in the weeks following the assault, the bullying escalated. On March 12, 2025, a student warned M.A. that J.H. intended to attack him that day. M.A. reported the warning to school staff, but Plaintiffs allege no efforts were made to investigate the threat or implement any meaningful safety measures. The Complaint alleges that later that same day, J.H. and several of his friends surrounded M.A. and his brother A.A. Fearing for their safety, the brothers attempted to flee the area. While trying to escape, M.A. fell and sustained a severe left distal femur fracture, while A.A. suffered head bruising and swelling. M.A. underwent emergency surgery to repair his leg. Since then, M.A. has suffered from persistent pain, nausea, dizziness, visual disturbances, and difficulty breathing, and is expected to require a second surgery for hardware removal required to repair the fracture. Both M.A. and A.A. have suffered severe emotional distress—including anxiety, hypervigilance, nightmares, and fear of returning to school—and have required trauma focused therapy.

ANALYSIS:

Procedural

Unless the Court has granted permission to file a longer memorandum, any reply or closing memorandum may not exceed 10 pages. (California Rules of Court, rule 3.113, subds. (d)-(e).) "A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper." (CRC, rule 3.113, subd. (g).) Here, Defendant's reply memorandum is 17 pages long. Because this is the first occurrence, the Court has exercised its discretion to consider the reply in its entirety. However, any future filings that exceed the applicable page limits will be treated as untimely filed.

Substantive

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212, superseded by statute as stated in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Third Cause of Action, Failure to Perform Mandatory Duty

Government Code section 815.6 provides, “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.”

Defendant demurs to the third cause of action on grounds that Plaintiffs have not identified a statutory basis for direct public entity liability or a specific mandatory, ministerial duty under Government Code section 815.6. The FAC alleges that Defendant is subject to mandatory statutory duties imposed by Education Code sections 44807 and 234.1. (FAC, ¶¶ 52-53.)

Under the Education Code, “[e]very teacher in the public schools shall hold pupils to a strict account for their conduct on the way to and from school, on the playgrounds, or during recess.” (Education Code, § 44807.) Education Code section 234.1 requires the State Department of Education to assess whether local education agencies have adopted anti-discrimination policies and compliant procedures for investigating discrimination complaints. (Education Code, § 234.1.)

Defendant argues that Section 44807 imposes only a general duty to supervise students, which does not create Section 815.6 liability because statutes which require judgment or discretion do not constitute mandatory duties under Section 815.6. (Demurrer, pp. 4:23-5:11.) The Court is not persuaded by Defendant’s argument. First, Defendant’s interpretation is contrary to the plain language of the statute. The statute states that teachers “shall hold pupils to a strict account for their conduct.” (Education Code, § 44807.) The mandate to supervise is not discretionary. Moreover, there is ample case law confirming that Education Section 44807 constitutes a mandatory duty under Government Code section 815.6. (E.I. v. El Segundo Unified School District (2025) 111 Cal.App.5th 1267, 1281; C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 869; Lucas v. Fresno Unified School Dist. (1993) 14 Cal.App.4th 866, 872; Rodriguez v. Inglewood Unified School Dist. (1986) 186 Cal.App.3d 707, 720-721.)

“While school districts and their employees have never been considered insurers of the physical safety of students, California law has long imposed on school authorities a duty to ‘supervise at all times the conduct of the children on the school grounds and to enforce those rules and regulations necessary to their protection. [Citations.];’ Education Code, § 13557 [now § 44807] ... The standard of care imposed upon school personnel in carrying out this duty to supervise is identical to that required in the performance of their other duties. This uniform standard to which they are held is that degree of care ‘which a person of ordinary prudence, charged with [comparable] duties, would exercise under the same circumstances.’ [Citations.] Either a total lack of supervision [citation] or ineffective supervision [citation] may constitute a lack of ordinary care on the part of those responsible for student supervision. Under section 815.2, subdivision (a) of the Government Code, a school district is vicariously liable for injuries proximately caused by such negligence.” (Lucas, supra, 14 Cal.App.4th at p. 872.)

In the reply, Defendant cites to Thompson v. Sacramento City Unified Dist. (2003) 107 Cal.App.4th 1352 for the proposition that “courts have repeatedly declined to construe Education Code section 44807 as creating a mandatory ministerial duty enforceable through Government Code section 815.6.” (Reply, p.12:15-17.) Thompson, however, does not support Defendant’s position. The Court in Thompson explicitly recognized that school districts owe a duty to exercise reasonable care in supervising students and that breach of this duty may support liability under the Government Code. (Thompson, supra, 107 Cal.App.4th at pp. 761-764.)

Defendant next argues that it is immune from liability under Government Code section 820.2. (Demurrer, p. 5:12-19.) This argument is unavailing. Government Code section 820.2 provides: “Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.” Immunity under Section 820.2 is reserved for basic policy decisions and does not extend to “lower level decisions that merely implement a basic policy already formulated.” (E.I., supra, 111 Cal.App.5th at pp. 1282-1283.) Here, the FAC alleges that Defendant failed to follow or enforce its bullying and misconduct policy, failed to intervene in the altercation, and failed to adequately supervise the school grounds. (FAC, ¶¶ 19, 22-24, 27, 54-57.) Such conduct does not qualify as “quasi-legislative policy-making” making entitled to immunity under Government Code section 820.2. (E.I., supra, 111 Cal.App.5th at p. 1285.)

Lastly, Defendant argues that the FAC fails to adequately plead causation. (Demurrer, p. 5:20-26.) Upon review of the allegations in the FAC, Plaintiffs sufficiently allege that their injuries were caused by Defendant's failure to protect Plaintiffs from J.H.'s conduct. (FAC, ¶¶ 27, 51-58.)

Thus, the Court finds that Plaintiffs have sufficiently alleged the cause of action for failure to perform mandatory duty.

The demurrer is OVERRULED.

RULING:

Defendant Pasadena Unified School District's Demurrer is OVERRULED.

Answer to be filed within 10 days.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.